



CHAPTER xxx.

An Act to empower the mayor aldermen and burgesses of the borough of Hartlepool to work trolley vehicles and for other purposes.

A.D. 1926.

[30th June 1926.]

WHEREAS the borough of Hartlepool (hereinafter referred to as "the borough") is a municipal borough subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") are the local and road authority of the borough :

And whereas the borough adjoins the borough of West Hartlepool and under or by virtue of the Hartlepool Tramway Order 1883 and sundry Orders amending the same a through tramway between the central portion of the borough and the central portion of the borough of West Hartlepool and other tramways in the borough of West Hartlepool have been constructed :

And whereas in or about the year 1912 the mayor aldermen and burgesses of the borough of West Hartlepool (hereinafter referred to as "the West Hartlepool Corporation") purchased the tramways in the borough of West Hartlepool and by the West Hartlepool Tramways Order 1912 (hereinafter referred to as "the Order of 1912") confirmed by the Tramways Orders Confirmation Act 1912 powers to work the same and to enter into agreements for working any tramways connected therewith were conferred upon them :

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— And whereas by section 40 of the Order of 1912 reciprocal running powers over the portions of the through tramway in the borough and in the borough of West Hartlepool (forming together the whole of the through route) were conferred respectively upon the West Hartlepool Corporation and on the General Electric Tramways Company Limited who then owned the portion of the through tramway in the borough or any company body or person for the time being working that portion of tramway :

And whereas the West Hartlepool Corporation in the year 1912 also entered into an agreement with the General Electric Tramways Company Limited to work and have since worked and by arrangement with the Corporation are now working the portion of the through tramway in the borough as part of their tramway undertaking :

And whereas further powers in respect of their tramway undertaking were conferred upon the West Hartlepool Corporation by the West Hartlepool Corporation Act 1919 and the West Hartlepool Corporation Act 1923 and by the last-mentioned Act the West Hartlepool Corporation were authorised to run trolley vehicles on certain routes including the portion of the route of the through tramway situate in the borough of West Hartlepool and are running such vehicles on certain of those routes but by that Act they were precluded from carrying passengers by their trolley vehicles when running between Middleton Road and the borough boundary :

And whereas by the West Hartlepool (Trolley Vehicles) Order 1925 confirmed by the West Hartlepool Corporation (Trolley Vehicles) Order Confirmation Act 1925 (hereinafter referred to as "the Order of 1925" and "the Confirming Act of 1925" respectively) the restriction on carrying passengers imposed on the West Hartlepool Corporation by the Act of 1923 was removed and the West Hartlepool Corporation were also empowered to run trolley vehicles on the portion of the route of the through tramway situate in the borough and on other streets also within the borough and to carry passengers thereby :

And whereas by section 10 of the Order of 1925 it is enacted that if the Corporation shall under the

provisions of the Tramways Act 1870 purchase as from A.D. 1926.
the second day of August one thousand nine hundred and
twenty-five the tramways in the borough and if the
Corporation shall within a period of two years from
the date of the Confirming Act of 1925 apply to Parlia-
ment for powers to use trolley vehicles on the routes
in the borough described in the Order of 1925 subject
to the provisions contained in the said section 10 then
the West Hartlepool Corporation shall not oppose such
application except so far as may be necessary to secure
the insertion of provisions for the protection of their
interests in conformity with the provisions of the said
section and of any agreement entered into by them with
the Corporation :

And whereas the Corporation purchased the tram-
ways in the borough as from the second day of August
one thousand nine hundred and twenty-five and the
provisions of this Act are in conformity with the intention
of the provisions of the said section 10 of the Order of
1925 :

And whereas the Corporation of West Hartlepool
have not yet completed the equipment of the trolley
vehicle routes in the borough for the purpose of running
trolley vehicles :

And whereas it is expedient that the Corporation be
empowered to work and use trolley vehicles as in this
Act provided and that the other provisions of this Act
be enacted :

And whereas the purposes of this Act cannot be
effected without the authority of Parliament :

And whereas estimates have been prepared by the
Corporation for the purposes hereinafter mentioned and
such estimates are as follows :—

	£
For the purchase of trolley vehicles	- 10,000
For the provision of the electrical equip- ment and other works necessary for working the trolley vehicles or for the purchase of such equipment and works from the West Hartlepool Corporation	- - - - - 10,000
A 2	3

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	£
For the purchase of lands and the erection of buildings for the purpose of the trolley vehicles of the Corporation -	3,000
For or in respect of the removal of the tramways in the borough and the reinstatement of the roads in which the same are laid - - - -	1,500

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Hartlepool Corporation (Trolley Vehicles) Act 1926.

Interpretation.

2. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires :—

“ The borough ” means the borough of Hartlepool ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The West Hartlepool Corporation ” means the mayor aldermen and burgesses of the borough of West Hartlepool ;

“ The town clerk ” means the town clerk of the borough ;

“ The borough fund ” and “ the borough rate ” mean respectively the borough fund and the borough rate of the borough ;

“ The Order of 1923 ” and “ the Act of 1925 ” mean respectively the Hartlepool Order 1923 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 3) Act 1923 and the Hartlepool Corporation Act 1925; A.D. 1926.
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“ The Order of 1912 ” “ the Act of 1923 ” and “ the Order of 1925 ” mean respectively the West Hartlepool Corporation Tramways Order 1912 confirmed by the Tramways Orders Confirmation Act 1912 the West Hartlepool Corporation Act 1923 and the West Hartlepool Corporation (Trolley Vehicles) Order 1925 confirmed by the West Hartlepool Corporation (Trolley Vehicles) Order Confirmation Act 1925;

“ Trolley vehicle ” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;

“ Trolley vehicle routes ” means the routes in the borough upon which the Corporation are by this Act authorised to work and use trolley vehicles;

“ The day of transfer ” means the last day of the period of six months immediately after the passing of this Act or such other date as may be agreed between the West Hartlepool Corporation and the Corporation;

“ Road authority ” means the authority company or person (other than the Corporation) charged with or liable to contribute to the maintenance of any road over which any trolley vehicle worked by the Corporation under the provisions of this Act will pass;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

3.—(1) The West Hartlepool Corporation shall sell Corporation to the Corporation and the Corporation shall purchase to purchase from the West Hartlepool Corporation the overhead overhead equipment and other works erected or constructed (if equipment.

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A.D. 1926. any) or to be erected or constructed by the West Hartlepool Corporation in the borough under the provisions of the Order of 1925.

(2) The purchase price or money to be paid by the Corporation to the West Hartlepool Corporation for such equipment and works shall be the amount of the capital expended by the West Hartlepool Corporation thereon less such sum as may be reasonable in respect of the depreciation thereof.

(3) (a) The Corporation shall pay the purchase money to the West Hartlepool Corporation on the day of transfer and upon such payment being made the said overhead equipment and other works shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation and such transfer and vesting are in this Act referred to as "the transfer."

(b) If the purchase money is not paid on the day of transfer the Corporation shall pay to the West Hartlepool Corporation interest on the amount thereof at the rate of six per centum per annum as from the day of transfer until the actual payment of the said purchase money.

(4) As from the transfer the Corporation shall take over from the West Hartlepool Corporation all contracts and agreements obligations and liabilities with reference to overhead equipment and other works erected or constructed or to be erected or constructed in the borough under the provisions of the Order of 1925 and any such contracts or agreements shall be as binding and of as full force and effect in every respect and may be enforced as fully and effectually against or in favour of the Corporation as if instead of the West Hartlepool Corporation the Corporation had been a party thereto and as from the transfer the West Hartlepool Corporation shall be released from all liability under any such contract or agreement Provided that before entering into any such contract or agreement the West Hartlepool Corporation shall submit the draft thereof to the Corporation and shall consider any observations which the Corporation may make to them upon such draft within fourteen days after such submission.

(5) Any question arising between the Corporation and the West Hartlepool Corporation under the provi-

sions of this section shall be referred to and determined by a single arbitrator to be appointed (failing agreement) by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination. A.D. 1926.
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4.—(1) On the day of transfer or in the event of no overhead equipment or other works having been erected or constructed by the West Hartlepool Corporation in the borough under the powers of the Order of 1925 and no contract for such erection or construction having been made by the West Hartlepool Corporation and being subsisting at the passing of this Act then on the expiration of one month from the passing of this Act the Corporation shall repay to the West Hartlepool Corporation the sums (if any) which may have been expended or may be owing by the West Hartlepool Corporation under the provisions of section 4 (Adaptation of roads) of the Order of 1925. Modification of powers and liability of West Hartlepool under Order of 1925.

(2) As from the transfer or in the event of no overhead equipment or other works having been erected or constructed by the West Hartlepool Corporation in the borough under the powers of the Order of 1925 and no contract for such erection or construction having been made by the West Hartlepool Corporation and being subsisting at the passing of this Act then as from the expiration of one month from the passing of this Act the powers and liabilities conferred and imposed upon the West Hartlepool Corporation by section 3 (Power to use trolley vehicles) and section 4 (Adaptation of roads) respectively of the Order of 1925 are hereby repealed and cancelled.

5. The receipt in writing of the treasurer of the borough of West Hartlepool for the purchase money or any part thereof or any other sum payable to the West Hartlepool Corporation under the provisions of this Part of this Act shall effectually discharge the Corporation from the sum which in any such receipt shall be acknowledged to have been received and from being answerable or accountable for the loss mis-application or non-application thereof. Provided that if from any cause the Corporation are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf Receipt for purchase money.

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" the matter of the Hartlepool Corporation (Trolley
" Vehicles) Act 1926 " and a receipt shall be given to the
Corporation by the cashier of the said bank for the
money which shall have the same effect as the receipt
of the treasurer of the borough of West Hartlepool.

Copy of Act
and receipt
for purchase
money to be
evidence of
transfer.

6. The production of a King's Printer's copy of
this Act duly stamped together with a receipt for the
purchase money purporting to be signed by the treasurer
of the borough of West Hartlepool or by the cashier
of the Bank of England shall (unless it be proved that
such purchase money has not been paid) be conclusive
evidence in all courts and proceedings of the transfer
to and vesting in the Corporation of the said overhead
equipment and other works of the West Hartlepool
Corporation.

As to elec-
trical works.

7.—(1) For the purpose of working trolley vehicles
by electrical power upon the trolley vehicle routes and
in so far as the equipment of those routes for that purpose
may not have been carried out by the West Hartlepool
Corporation before the expiration of a period of six
months from the passing of this Act under the powers
of the Order of 1925 the Corporation may adapt or
complete the adaptation of the overhead equipment
which has been provided for working the tramways of
the Corporation or otherwise equip or complete the
equipment of those routes for that purpose.

(2) (a) For the purpose aforesaid the Corporation
may from time to time in under or over the surface
of the streets or roads in the borough forming or
adjoining the trolley vehicle routes or any other streets
or roads in the borough in which it may be necessary
so to do in order to connect the apparatus and equipment
for working such vehicles with any generating station
or substation place erect and maintain all necessary
and proper standards brackets conductors mains cables
wires posts poles and any other necessary or convenient
apparatus and equipment for the purpose of working
trolley vehicles by electrical power and may for that
purpose subject to the provisions contained in Part II.
of the Tramways Act 1870 and in this Act open and
break up any such street or road and any sewers drains
water or gas pipes tubes wires telephonic and telegraphic

apparatus therein or thereunder Provided that no posts or electrical apparatus shall be erected upon the carriage-way of any public street or road except with the consent of the Minister of Transport : A.D. 1926.

Provided also that all posts and apparatus erected by the Corporation or their agents under the powers of this Act in any county road shall be placed in such position as the council of the administrative county of Durham may approve.

(b) The route in which any electrical apparatus is to be placed erected or maintained by the Corporation or their agents for the purpose of connecting the trolley vehicle routes or any of them with a generating station or substation shall so far as the same shall follow any county road be approved by the council of the administrative county of Durham.

(3) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(4) In this section the expression generating station has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

8.—(a) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section seven of the Telegraph Act 1878 shall apply (instead of the provisions of section thirty of the Tramways Act 1870) to any such alteration. For protection of Postmaster-General.

(b) In the event of any trolley vehicles of the Corporation being worked by electricity the following provisions shall have effect :—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by

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His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the trolley vehicles by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the

works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated or used by or supplied to the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Ministry of Transport regulations : A.D. 1926.

- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding twenty pounds and to a further fine not exceeding ten pounds for every day during which such contravention or non-compliance continues after conviction thereof or if the telegraphic communication is wilfully interrupted to a fine not exceeding fifty pounds and to a further fine not exceeding fifty pounds for every day on which such interruption continues after conviction thereof :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

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- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections two ten eleven and twelve of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Minister of Transport on the application of either party whose decision shall be final and sections thirty to thirty-two both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the trolley vehicle routes of the Corporation.

Use of posts
&c. by Post-
master-
General.

9.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road and belonging to the Corporation in connection with the trolley vehicles which they are by this Act authorised to work and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph

and from time to time to alter any telegraph so supported A.D. 1926.
subject to the following conditions :—

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the trolley vehicle routes;
- (b) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided;
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the trolley vehicles or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Minister of Transport arising through the exercise by the Postmaster-General of the powers conferred by this section;
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference

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as to the conditions of attachment shall be determined as hereinafter provided;

- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road;
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair;
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants;
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided;
- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the trolley vehicle routes or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants;

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided. A.D. 1926.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their trolley vehicles or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meanings as in the Telegraph Act 1878.

10. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus acquired provided erected or maintained by Corporation to have exclusive right of using appa-

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—
ratus for
working
trolley
vehicles.

Power to
use trolley
vehicles.

them for the purpose of working trolley vehicles and any person except by agreement with the Corporation using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

11. After the completion of the sale and purchase provided for by the section of this Act of which the marginal note is "Corporation to purchase overhead equipment" or the completion by the Corporation of the equipment for the purpose of working trolley vehicles by electrical power on the trolley vehicle routes whichever is the later the Corporation may provide maintain and equip but shall not manufacture and may use trolley vehicles upon the following trolley vehicle routes in the borough (that is to say):—

Route No. 1 2 miles 1 furlong 7 chains or thereabouts in length commencing in Durham Street at its junction with Milbank Crescent and passing along Durham Street Brougham Street Friar Terrace Friar Street Church Close Middlegate Street Northgate Street Milbank Crescent Hart Road and Cleveland Road and terminating at the boundary of the borough in the last-mentioned road;

Route No. 1A 4·3 chains or thereabouts in length commencing at the junction of Northgate Street and Middlegate Street passing along Middlegate Street in a westerly direction into Victoria Street Sunnyside and Friendship Lane and terminating (a) in Victoria Street at a point sixty feet or thereabouts south of the intersection of the centre lines of Victoria Street and Friendship Lane (b) in Friendship Lane at a point sixty feet or thereabouts west of the intersection of those centre lines and (c) in Sunnyside at a point forty feet or thereabouts north of the intersection of the centre lines of Sunnyside and Middlegate Street;

Route No. 2 1 furlong 6·2 chains or thereabouts in length commencing at the junction of Union Street and Northgate Street proceeding along Union Street Brougham Street to its junction with Lumley Street and Lumley Street to and terminating at its junction with Friar Street;

Route No. 2A 2·4 chains or thereabouts in length A.D. 1926.
 commencing at the junction of Brougham Street
 and Lumley Street passing along Brougham
 Street to and terminating at its junction with
 Church Close; —

Route No. 3 1 mile 2 furlongs 9 chains or there-
 abouts in length commencing at the junction
 of Cleveland Road and Hart Road passing
 along Hart Road to and terminating at the
 borough boundary;

Route No. 4 6 chains or thereabouts in length
 commencing at the junction of Baltic Street
 and Durham Street passing along Baltic Street
 to and terminating at its junction with North-
 gate Street :

Provided that notwithstanding anything contained
 in this Act trolley vehicles shall not be used by the
 Corporation in Friar Terrace Friar Street Church Close
 Union Street Lumley Street Victoria Street Sunnyside
 or Friendship Lane except with the consent in writing
 of the Minister of Transport and subject to such
 conditions as he may impose :

Provided also that before equipping any trolley
 vehicle route to include a turning point or before
 arranging for a new turning point on any route the
 Corporation shall submit plans of the turning points to
 the Minister of Transport for approval.

12. The trolley vehicles authorised by this Act shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889 nor motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to those exceptions neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 nor the Town Police Clauses Act 1889 shall apply to the said trolley vehicles.

Vehicles not
 to be
 deemed
 light loco-
 motives or
 motor cars.

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—
Duties on
licences for
trolley
vehicles.

Approval of
vehicles by
Minister of
Transport.

13. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for the trolley vehicles authorised by this Act as hackney carriages.

14. The trolley vehicles and the electrical equipment thereof acquired provided or erected under the authority of this Act shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport.

Before applying to the Minister of Transport for his approval of the weight of any trolley vehicles to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Corporation shall give to such railway company notice of the weight of the trolley vehicles proposed to be used by them and the Minister of Transport shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that notice of such objections shall be forwarded by such railway company to the Corporation at the same time as the same are submitted to the Minister of Transport.

Provisions
as to use of
electrical
power.

15. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the trolley vehicles :—

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting

electrical power or of telegraphic telephonic or
electric signalling communication or the currents
in such wire line or apparatus:

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—

- (3) The electrical power shall be used only in accordance with the Ministry of Transport regulations and in such regulations provisions shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Corporation shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the electrical power regulations and in prescribing such means the Minister of Transport shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the Corporation and any other party with respect to anything

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in this section contained such difference shall unless the parties otherwise agree be determined by the Minister of Transport or at his option by an arbitrator to be appointed by him and the costs of such determination shall be in the discretion of the Minister or of the arbitrator as the case may be :

- (7) The Corporation using electrical power contrary to the provisions of this Act or of the Ministry of Transport regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence continues after conviction thereof. Provided always that whether any such penalty has been recovered or not the Minister of Transport if in his opinion the Corporation in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the Ministry of Transport regulations may by order direct the Corporation to cease to use electrical power and thereupon the Corporation shall cease to use electrical power and shall not again use the same unless with the authority of the Minister of Transport and in every such case the Minister of Transport shall make a special report to Parliament notifying the making of such order :
- (8) The expression " Corporation " in this section includes licensees and any person owning working or running carriages over any of the trolley vehicle routes.

Inspection
by Minister
of Trans-
port.

16. No trolley vehicle route shall be open for public traffic until it has been inspected and certified to be fit for traffic by an officer appointed by the Minister of Transport.

Provisions
for safety of
public.

17. The trolley vehicles used by the Corporation may be moved by electrical energy subject to the following provisions (that is to say) :—

- (1) The electrical energy shall not be used except according to a system approved by the Minister of Transport :

(2) The Minister of Transport shall make regulations A.D. 1926.
 (in this section referred to as "the Ministry
 of Transport regulations") for securing to the
 public all reasonable protection against danger
 arising from the use under this Act of electrical
 energy for propelling the trolley vehicles and
 for regulating the use of electrical energy :

(3) The Corporation using any electrical energy
 contrary to the provisions of this Act or of the
 Ministry of Transport regulations shall for
 every offence be liable to a penalty not exceeding
 ten pounds and also in the case of a continuing
 offence to a further penalty not exceeding five
 pounds for every day during which such offence
 is continued after conviction thereof :

(4) The Minister of Transport if he is of opinion—

(a) that the Corporation have made default
 in complying with the provisions of this Act
 or of the Ministry of Transport regulations
 whether a penalty in respect of such non-
 compliance has or has not been recovered ; or

(b) that the use of electrical energy as
 authorised under this Act is a danger to the
 passengers or the public

may by order either direct the Corporation
 to cease to use such electrical energy or permit
 the same to be continued only subject to such
 conditions as the Minister of Transport may
 impose and the Corporation shall comply with
 every such order In every such case the Minis-
 ter of Transport shall make a special report to
 Parliament notifying the making of such order.

18.—(1) The Corporation may demand and take Rates for
 for every passenger travelling upon the trolley vehicles passengers
 including every expense incidental to the conveyance on trolley
 of such passenger any rates charges or fares not exceeding vehicles.
 the following (that is to say) :—

For a stage not exceeding half a mile	One penny
Exceeding half a mile and not ex- ceeding 1 mile - - - -	Twopence
Exceeding 1 mile and not exceeding 2 miles - - - -	Threepence

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A.D. 1926.	Exceeding 2 miles and not exceeding	
—	3 miles - - - - -	Fourpence
	Exceeding 3 miles and not exceeding	
	4 miles - - - - -	Fivepence.

(2) A list of all rates and charges authorised to be taken for passengers shall be exhibited in a conspicuous place inside each of the trolley vehicles.

Passengers' luggage on trolley vehicles. **19.** Every passenger travelling upon the trolley vehicles may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof but all such personal luggage must be carried by hand and at the responsibility of the passenger and must not be placed so as to occupy any part of a seat and must not be of a form or description to annoy or inconvenience other passengers.

Dogs on trolley vehicles. **20.** The Corporation may if they think fit carry on the trolley vehicles dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger.

Cheap fares for labouring classes. **21.—**(1) The Corporation at all times after the opening of the trolley vehicle routes for public traffic shall run a proper and sufficient service of trolley vehicles for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays excepted) at such times not being later than eight o'clock in the morning or earlier than five o'clock in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares—

For a stage not exceeding 1 mile	-	One penny
Exceeding 1 mile and not exceeding		
2 miles - - - - -	-	Twopence
Exceeding 2 miles and not exceeding		
3 miles - - - - -	-	Threepence
Exceeding 3 miles and not exceeding		
4 miles - - - - -	-	Fourpence:

Provided that on Saturdays the Corporation instead of running such vehicles after five o'clock in the evening shall run the same at such times between noon and two o'clock in the afternoon as may be most convenient for the said purpose.

(2) If complaint is made to the Minister of Transport that such proper and sufficient service is not provided the Minister after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Minister to be reasonable. A.D. 1926.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

22. The Corporation may demand and take in respect of any parcels conveyed by them on the trolley vehicles including every expense incidental to such conveyance any rates or charges not exceeding the following (that is to say):— Rates for parcels on trolley vehicles.

	Any distance	
	s.	d.
For any parcel not exceeding seven pounds in weight - - - - -	0	6
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -	0	10
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight - - - - -	1	2
For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight - - - - -	1	6

23.—(1) If at any time after three years from the opening for public traffic of the trolley vehicle routes or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the trolley vehicle routes or any portion thereof it is represented in writing to the Minister of Transport by twenty inhabitant ratepayers of the borough or by the Corporation that under the circumstances then existing all or any of the rates charges or fares demanded and taken in respect of the traffic on the trolley vehicle routes or on such portion should be revised the Minister of Transport may (if he thinks fit) direct an inquiry and if the person holding the inquiry reports that it has been proved to his satisfaction that all or any of the rates charges or fares should be revised the Minister may subject to the maximum rates charges or fares Periodical revision of fares and charges.

A.D. 1926. authorised by this Act by order in writing alter modify reduce or increase all or any of the rates charges or fares to be taken in respect of the trolley vehicle routes or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister of Transport made in pursuance of this section.

(2) Where the Minister causes any such inquiry as aforesaid to be held all expenses incurred by the Ministry in relation to that inquiry shall be paid as the Minister may by order direct either by the Corporation or by any of the parties on whose representations the inquiry is held or partly by the Corporation and partly by any of such parties and the Minister may certify the amount of the expenses so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

Application
of certain
provisions of
Tramways
Act 1870 to
trolley
vehicles.

24.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and such provisions shall be read and have effect as if the works to be adapted erected or constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the trolley vehicles were carriages used on tramways :—

Part II (Relating to the construction of tramways)
except sections 25 28 and 29 :

Part III (General Provisions) :

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

- Section 51 (Penalty on passengers practising frauds on the promoters); A.D. 1926. —
 Section 53 (Penalty for bringing dangerous goods on the tramway);
 Section 55 (Promoters or lessees to be responsible for all damages);
 Section 56 (Recovery of tolls penalties &c.);
 Section 57 (Right of user only);
 Section 60 (Reserving powers of street authorities to widen &c. roads); and
 Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this Act shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

25. On the completion of the sale and purchase aforesaid or the equipment of the trolley vehicle routes whichever shall be the later all powers to run over and provide a service of carriages on the tramways of the Corporation shall cease and the Corporation may remove the rails of those tramways from the surface of the roads in which the same are laid All works carried out by the Corporation under the powers of this section which affect the property of the London and North Eastern Railway Company (in this section referred to as "the company") shall be carried out in accordance with plans sections and specifications to be previously submitted to and approved by the engineer of the company and under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the said engineer and in particular the Corporation shall reinstate such portion of Cleveland Road where it is crossed by the rails of the company in such a manner as not to interfere with the said rails or to impede the traffic using the same.

Discontinu-
 ance of
 tramways.

26.—(1) (a) If at any time hereafter the Corporation desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the streets and roads in this Act hereinbefore referred to) within the borough they may make application to the Minister of Transport and the Minister of Transport

Minister of
 Transport
 may autho-
 rise new
 routes.

A.D. 1926. — is hereby empowered to make a Provisional Order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road or roads to which such application relates and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

(b) The Minister of Transport shall not make any Provisional Order under this section relating to any road in respect of which the Corporation are not the road authority except with the consent of the road authority Provided that the consent of a road authority shall not be unreasonably withheld and that any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

(2) No such application shall be entertained by the Minister of Transport unless the Corporation shall—

(a) have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the area to which the application relates;

(b) have also published such notice once in the months of October or November in the London Gazette;

(c) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads to which such application relates

a notice of their intention to make such application and each such notice shall state the time and method for bringing before the Minister of Transport any objections to the grant of such application.

(3) The Minister of Transport may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister of Transport shall consider any such application and may if he thinks fit direct an inquiry to be held in relation thereto or may otherwise inquire

as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition. A.D. 1926.

(5) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(7) The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be prima facie evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Minister of Transport in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Minister of Transport in connection with any inquiry under this section shall be paid by the Corporation.

27. For the protection of the London and North Eastern Railway Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Corporation apply and have effect with reference to

For protection of London and North Eastern Railway Company.

A.D. 1926. the exercise by the Corporation of the powers of this Act
— (that is to say) :—

- (1) Nothing contained in the sections of this Act whereof the marginal notes are “As to electrical works” and “Power to use trolley vehicles” shall authorise any interference with any street or road belonging to and forming the approach to any station depot works or docks of the company nor shall the Corporation in erecting the trolley vehicle equipment or using any trolley vehicle route by this Act authorised obstruct or interfere with the convenient access to any such station depot works or docks without the consent in writing of the company which consent shall not be unreasonably withheld :
- (2) The Corporation shall so construct maintain and use the trolley vehicle equipment provided under or in pursuance of this Act and so work or run any trolley vehicle so provided under over or upon any bridge or culvert and the approaches thereto belonging to or maintainable by the company (in this section referred to as “the bridge”) as not injuriously to affect the structure thereof and in the event of any such injury being caused the Corporation shall at their own expense and to the reasonable satisfaction of the company restore the same to as good a condition as it was in before such injury was occasioned :
- (3) The Corporation shall give to the company twenty-eight days’ notice in writing of their intention to commence the erection of the trolley vehicle equipment under or upon the bridge and shall at the same time send to the company particulars as to such equipment which shall be erected under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the company’s engineer and shall thereafter be maintained to the like satisfaction :
- (4) The erection of the trolley vehicle equipment under or upon the bridge shall be carried out by the Corporation under the superintendence

(if given) and to the reasonable satisfaction of the engineer of the company : A.D. 1926.

- (5) If the company hereafter require under their existing statutory powers to widen lengthen strengthen reconstruct alter or repair the bridge or to widen or alter any railway thereunder or to lift or support the bridge the company may require the Corporation at their own expense to alter the trolley vehicle equipment in such manner as the circumstances of the case may reasonably require and in such case the company shall at the same time send sufficient plans sections specifications and other information to show the nature of the works proposed to be executed by the company and the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it should be reasonably necessary for such purpose that the trolley vehicle equipment under or upon the bridge be wholly or in part removed or the user thereof or the running or working of any trolley vehicles of the Corporation under or over the bridge stopped or delayed and if the company gives to the Corporation fourteen days' notice in writing in that behalf (or in the case of emergency such notice as may be reasonably practicable) then such part of the trolley vehicle equipment shall be removed by the Corporation or the user thereof stopped or delayed to such extent (if at all) as may be reasonably required by such notice but no such user running or working shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and such part of the trolley vehicle equipment shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such removal stoppage delay or taking up as aforesaid :
- (6) The Corporation shall not in the execution maintenance user or repair of the trolley vehicle equipment or the running or working of any trolley vehicles obstruct or interfere

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—

with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon :

- (7) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company by or by reason of the erection failure or repair of the trolley vehicle equipment or by reason of any act or omission of the Corporation or of their contractors or of any person in the employment of either of them and the Corporation shall effectually indemnify the company from all claims and demands upon or against them by reason of such erection failure or repair or of any such act or omission :
- (8) The Corporation shall on demand pay to the company the reasonable expense of and in connection with the employment by the company during the erection or repair of the trolley vehicle equipment under or upon the bridge of such inspectors watchmen and signalmen (if any) as may be reasonably necessary for preventing interference obstruction danger and accident from any of the operations acts or defaults of the Corporation or their contractors or of any person in the employ of either of them :
- (9) Any additional expense in the maintenance under their existing statutory powers of the bridge or any other work of the company which is occasioned to the company by the construction or user of the trolley vehicle equipment shall be borne by the Corporation :
- (10) If in consequence of the running by the Corporation of any trolley vehicles under or upon the bridge it shall be necessary that the bridge should be rebuilt or strengthened the company shall give to the Corporation notice accompanied by sufficient plans sections and specifications of their intended works and may after twenty-eight days from the date of the notice (or forthwith in case of emergency) proceed with all due despatch to execute all

such works as may be reasonably necessary in consequence of such running and the Corporation shall repay to the company any moneys reasonably expended by them in so doing : A.D. 1926.

- (11) If having regard to the proposed position of the trolley vehicle equipment when considered in relation to the position of the existing works of the company at any point where the trolley vehicle equipment will be constructed over or under the railway or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires or cables either of the Corporation or the company that the wires or cables of the company and the apparatus in connection therewith shall be altered the company may execute any works reasonably necessary for such alterations and the reasonable expense incurred by them in so doing shall be repaid to the company by the Corporation :
- (12) Nothing contained in this Act shall impose any obligation on or enlarge any obligation of the company to strengthen adapt alter or reconstruct any bridge maintainable by them :
- (13) If any difference arises under this section between the Corporation and the company that difference shall be referred to the arbitration of a single arbitrator to be appointed failing agreement by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

28. The following provisions of the Act of 1925 shall extend and apply to the trolley vehicles by this Act authorised and the trolley vehicle routes as if those provisions were with all necessary modifications re-enacted in this Act (that is to say) :—

- Section 8 (Shelters or waiting rooms);
- Section 9 (Cloakrooms &c.);
- Section 11 (Stopping and starting places);
- Section 12 (For protection of London and North Eastern Railway Company);

Application of certain provisions relating to omnibuses of Act of 1925 to trolley vehicles.

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Corporation (Trolley Vehicles) Act, 1926.

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Section 13 (Attachment of signs indicating stopping places to lamp posts &c.);

Section 14 (Lost property);

Section 16 (Inquiries by Minister of Transport):

Provided also that the said sections 11 and 13 shall not have effect within the borough of West Hartlepool except with the consent in writing of the West Hartlepool Corporation.

Working
agreements.

29.—(1) Subject to the provisions of this Act the Corporation may—

(a) Enter into and carry into effect contracts and agreements with any person or local authority authorised (whether expressly or otherwise) to enter into such contracts or agreements and owning or working any trolley vehicles connecting with any of the trolley vehicle routes with respect to all or any of the following purposes—

(i) The construction or adaptation of apparatus and equipment for working trolley vehicles;

(ii) The formation of junctions between the trolley vehicle routes and the routes upon which any such person or local authority is authorised to work and use trolley vehicles;

(iii) The working running using maintaining and managing by either of the contracting parties of the trolley vehicles or any of the trolley vehicles of the other and the fixing collecting apportionment and distribution of the rates charges and fares arising therefrom or of a rent for the same;

(iv) The supply under any agreement for the trolley vehicles of either of the contracting parties being worked and used by the other of motive power or of vehicles and plant necessary for the purposes of such agreement Provided that no electrical energy shall be supplied or shall continue to be supplied by the Corporation under this section in any district in which any local authority or person shall be supplying

energy under statutory authority without the consent in writing of such local authority or person; A.D. 1926.

(v) The management regulation interchange collection transmission and delivery of traffic coming from or destined for the trolley vehicle undertakings of the contracting parties;

(vi) The appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the trolley vehicles of the contracting parties to be worked in connection with each other;

(b) Confirm subject to this section any such contracts and agreements entered into before the passing of this Act.

(2) Any contract or agreement under this section shall be submitted to and be subject to the approval of the Minister of Transport.

(3) During the continuance of any agreement under this section for the working running or user by one of the contracting parties of the trolley vehicles of the other the routes upon which the parties so contracting are authorised to work and use trolley vehicles shall for the purposes of calculating maximum rates and charges or fares in respect of conveyance partly over the routes of the one party and partly over those of the other be considered as one route and the maximum rate charge or fare for conveyance over the routes of each such party shall be calculated at the maximum rate charge or fare which would be applicable if the conveyance took place for the entire distance over those routes only.

30.—(1) (a) From and after the transfer the Corporation or any company body or person for the time being working routes Nos. 1 1A 2 and 2A authorised by this Act may subject to paragraphs (b) and (c) of this subsection for the purpose of affording a through route from the borough to the intersection of Lynn Street and Church Street in the borough of West Hartlepool run over and use with their trolley vehicles and officers and servants in charge of their trolley vehicles for the conveyance of passengers passengers' luggage dogs and

As to through service between Hartlepool and West Hartlepool.

A.D. 1926. — parcels trolley vehicle route No. 4 authorised by the Act of 1923 and so much of trolley vehicle route No. 1 authorised by that Act as may be necessary for that purpose with the same turning points for the trolley vehicles of the Corporation as those used by the West Hartlepool Corporation for turning their trolley vehicles when running over the through route or any portion thereof together with all equipment and works provided in connection with such last-mentioned route and portion of route and as regards traffic so conveyed by the Corporation they shall demand and take in respect of the trolley vehicles run over the said route and part of route the same rates charges and fares as those for the time being demanded and taken by the West Hartlepool Corporation or such other rates charges and fares not exceeding the rates charges and fares for the time being authorised to be demanded in respect thereof as may be agreed between the West Hartlepool Corporation and the Corporation.

(b) The terms conditions and regulations in respect of such use and of the supply of electrical energy for working and lighting the trolley vehicles run by the Corporation in the borough of West Hartlepool and in respect of the tolls and other considerations to be paid for such use and supply shall (if not agreed between the Corporation and the West Hartlepool Corporation) be from time to time determined in manner provided by the Tramways Act 1870 with respect to differences between promoters and a local authority.

(c) In running over and using the said trolley vehicle route No. 4 and part of trolley vehicle route No. 1 as aforesaid and in using any equipment and works provided in connection therewith in accordance with the provisions hereinbefore contained the regulations and byelaws for the time being in force on that route and part of route shall be at all times observed so far as such regulations and byelaws shall be applicable.

(2) (a) From and after the transfer the West Hartlepool Corporation for the purpose of affording a through route from the borough of West Hartlepool to the borough may subject to paragraphs (b) and (c) of this subsection run over and use with their trolley vehicles and officers and servants in charge of such trolley

vehicles for the purpose of conveying passengers passengers' luggage dogs and parcels trolley vehicle routes Nos. 1 1A 2 and 2A by this Act authorised with the same turning points for the trolley vehicles of the West Hartlepool Corporation as those used by the Corporation for turning their trolley vehicles when running over the through route or any portion thereof together with all equipment and works provided in connection with each such route and as regards traffic so conveyed by the West Hartlepool Corporation that corporation shall demand and take in respect of the trolley vehicles run over the same the same rates charges and fares as those for the time being demanded and taken by the Corporation or such other rates charges and fares not exceeding the rates charges and fares for the time being authorised to be demanded in respect thereof as may be agreed between the West Hartlepool Corporation and the Corporation.

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(b) The terms conditions and regulations in respect of such use and of the supply of electrical energy for working and lighting the trolley vehicles run by the West Hartlepool Corporation in the borough and in respect of the tolls and other considerations to be paid for such use and supply shall (if not agreed between the Corporation and the West Hartlepool Corporation) be from time to time determined in manner provided by the Tramways Act 1870 with respect to differences between promoters and a local authority.

(c) In running over and using the said routes Nos. 1 1A 2 and 2A as aforesaid and in using any equipment and works provided in connection therewith in accordance with the provisions hereinbefore contained the regulations and byelaws for the time being in force on those routes shall be at all times observed so far as such regulations and byelaws shall be applicable.

31. Subject to the provisions of this Act the Corporation may on market or fair days or for the execution of any works by the Corporation or during the time of any public meeting procession or demonstration or for any other purpose which the Corporation having regard to the good government of the borough or the safety of the public may deem necessary order that the running of trolley vehicles on any trolley vehicle route by this

Power for
 Corporation
 to suspend
 traffic.

A.D. 1926. Act authorised or part thereof shall be stopped delayed or suspended but so that such stoppage delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay compensation for damages in respect thereof.

Penalty for malicious damage.

32. If any person wilfully and unlawfully does or causes to be done with respect to any apparatus used for or in connection with the working of the trolley vehicles of the Corporation anything which is calculated to obstruct or interfere with the working of such trolley vehicles or to cause injury to any person he shall be liable to a penalty not exceeding twenty pounds.

Use of trolley vehicles for sanitary purposes.

33. The Corporation may at such times and in such manner as they think fit (but subject to the provisions of this Act and to any byelaws for the time being in force with respect to trolley vehicles) use trolley vehicles in the borough for sanitary or road watering purposes and for the conveyance of scavenging stuffs road metal and other materials required for the works of the Corporation but such use shall not interfere with or hinder the running of trolley vehicles by any party other than the Corporation in pursuance of any agreement entered into under the section of this Act of which the marginal note is "Working agreements" or the rights powers and privileges of the West Hartlepool Corporation under the section of this Act of which the marginal note is "As to through service between Hartlepool and West Hartlepool."

Attachment of brackets &c. to buildings.

34. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of their trolley vehicles by electrical power :

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to

compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:

- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):
- (3) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building:
- (4) Notwithstanding anything contained in this section no brackets wires or apparatus shall be attached to any bridge or building forming part of the railway or dock undertaking of the London and North Eastern Railway Company without the previous consent in writing of that company or if such consent be unreasonably withheld the consent of the Minister of Transport.

For the purpose of this section any occupier of a building whose interest in the premises occupied is not less than that of a yearly tenant and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

35. The Corporation may run through trolley vehicles along any route on which the Corporation are for the time being authorised to run trolley vehicles and such trolley vehicles shall be distinguished from other trolley vehicles in such manner as the Corporation may direct and they may demand and take for every passenger

Through
trolley
vehicles.

A.D. 1926. — by such trolley vehicles a charge or fare not exceeding the maximum charge or fare authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such trolley vehicle. Provided that during the running of such through trolley vehicles the Corporation shall maintain a reasonably sufficient ordinary service of trolley vehicles.

Power to
reserve cars
for special
purposes.

36.—(1) Notwithstanding anything contained in this or any other Act to the contrary the Corporation may subject to the provisions of this Act on any occasion run and reserve trolley vehicles or omnibuses on any route on which the Corporation are for the time being authorised to run the same for any special purpose which the Corporation may consider necessary or desirable. Provided that such special trolley vehicles and omnibuses shall be distinguished from other trolley vehicles and omnibuses in such manner as the Corporation may direct and that during the running of such special trolley vehicles or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of trolley vehicles or omnibuses as the case may be.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such trolley vehicles or omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act of the Corporation as to rates charges or fares for passengers shall not except as hereinafter provided extend to any special trolley vehicle or omnibuses run for such special services as aforesaid and in respect thereof the Corporation may demand and take such rates charges or fares as they shall think fit. Provided that nothing in this subsection shall authorise the Corporation to demand or take from any passenger a lower rate charge or fare in respect of omnibuses run along any of the roads (other than Cleveland Road between its junction with Hart Road and the boundary of the borough) included in routes Nos. 1 1A 2 and 2A or on any route in competition with any trolley vehicle service provided on any such road (including Cleveland Road) than the rate charge or fare which they are required to demand and take under the proviso to section 7 (Fares and charges) of the Act of 1925.

(4) Any byelaws and regulations made by the Corporation under the provisions of this section shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws. A.D. 1926.
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37. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their trolley vehicle and omnibus undertakings and car sheds offices and other buildings for the purposes of those undertakings and may erect maintain and let dwelling-houses for such persons and offices and other buildings for the purposes of those undertakings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertakings. Dwelling-houses for persons in Corporation's employment and other buildings.

38. The Corporation shall perform in respect of trolley vehicles such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies. Conveyance of mails.

39. Subject to the provisions of this Act the trolley vehicle undertaking authorised by this Act shall be deemed to form part of the omnibus undertaking of the Corporation and that undertaking shall after the passing of this Act be called "the Hartlepool Corporation transport undertaking" Provided that in the accounts of the Corporation relative to their transport undertaking the receipts and expenditure upon and in connection with trolley vehicles and omnibuses shall (so far as may be reasonably practicable) be shown separately and in such accounts capital shall be distinguished from revenue. Trolley vehicles and omnibuses to constitute Hartlepool Corporation transport undertaking.

40.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed Power to borrow.

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A.D. 1926. within the respective periods (each of which for the purposes of this Act and of any enactment incorporated therewith or applied thereby shall respectively be "the prescribed period") mentioned in the third column thereof (namely) :—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) For the purchase of trolley vehicles -	£ 10,000.	12 years from the date or dates of borrowing.
(b) For the provision of electrical equipment and other works necessary for working the trolley vehicles or for the purchase of such equipment and works from the West Hartlepool Corporation	10,000	20 years from the date or dates of borrowing.
(c) For the purchase of lands and the erection of buildings for the purpose of the trolley vehicles of the Corporation	3,000	35 years from the date or dates of borrowing.
(d) For or in respect of the removal of the tramways in the borough and the reinstatement of the roads in which the same are laid	1,500	20 years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act	The sum requisite.	5 years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes (including working capital) of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be "the prescribed period" for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

(3) The provisions of this section prescribing the revenue fund or rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 92 (Power to use one form of mortgage) of the Act of 1925. A.D. 1926.

41. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for those purposes shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts. Certain provisions of Public Health Acts not to apply.

42. The following provisions of the Order of 1923 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act namely :— Application of financial provisions of Order of 1923.

Art. 8 Local Loans Act and certain provisions of Public Health Act made applicable:

Art. 10 Mode of repayment—Formation maintenance and application of sinking fund :

Art. 11 Increase reduction or discontinuance of payments to sinking fund—Surplus of sinking fund :

Art. 12 Power to re-borrow :

Art. 13 Application of borrowed moneys :

Art. 14 Receiver :

Provided that Article 8 shall be read and have effect as if subsection (2) thereof had been expressed to be made subject to the provisions of section 92 (Power to use one form of mortgage) of the Act of 1925.

43. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough. Informations by whom to be laid.

[Ch. xxx.] *Hartlepool* [16 & 17 GEO. 5.]
Corporation (Trolley Vehicles) Act, 1926.

A.D. 1926.
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Judges not
disqualified.

44. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Costs of
Act.

45. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys to be borrowed under this Act for that purpose.

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